		possession for specific personal property.”]; Simms v. NPCK Enterprises, Inc. (2003) 109 Cal.App.4th 233, 242 [“The claim and delivery law provides a complete prejudgment remedy to recover possession of personal property.”].) Moving party to give notice.
109	Lin v BMW of North America, 2025-01493430	Defendants BMW of North America LLC and BMW Financial Services NA, LLC’s (“Defendants”) Motion for Disqualification of Plaintiff’s Counsel and Plaintiff’s Counsel’s Firm is DENIED. Defendants seek disqualification of Eric McBurney and his firm Tung & Associates. McBurney is no longer with Tung & Associates and has not been associated with them since October 8, 2025. (McBurney Decl. ¶ 7; Tung Decl. ¶ 6.) Defendants contend that McBurney must be disqualified because he previously worked at the law firm that represents Defendants in this action, and that, while at that firm, McBurney represented Defendants in other lemon law cases. Defendants urge that Tung & Associates must also be disqualified because McBurney’s conflict is imputed to the entire firm. Defendants have not presented evidence that McBurney was exposed to information that was material to the representation of Plaintiff in this case. (See Khani v. Ford Motor Co. (2013) 215 Cal.App.4th 916, 922.) Defendants only present the declaration of the principal attorney at Defendants’ counsel’s law firm, Abtin Amir. Amir generally declares that McBurney was privy to strategy discussions, but does not even identify a single case that McBurney handled while at that firm or any specific individuals from BMW that McBurney communicated with. (See, generally, Amir Decl.) There are no declarations from anyone at BMW. Further, McBurney’s tenure at that firm lasted only six months. (Amir Decl. ¶ 5.) In opposing the motion, Plaintiff provides the declarations of McBurney and his (now former)

		colleagues at Tung & Associates, who testify that McBurney never discussed any strategy with his colleagues, beyond providing an update as to the status of service of the Complaint, the results of the electrical inspection of the subject vehicle, and a summary of his conversations with Plaintiff. (See generally, McBurney Decl, Tung Decl., Yots Decl., Chen Decl., Wang Decl.) Moving Parties to give notice.
110	Lober v Lober, 2026-01541707	Defendants Dona Lee Lober and Lonnie Kocontes separately demur to the First Amended Complaint (FAC) of plaintiff John T. Lober Jr. Plaintiff did not file opposition to either demurrer. For the reasons set forth below the demurrer is SUSTAINED with 20 days leave to amend. <u>Fraud in the Execution</u> The FAC fails to allege what specific representation was made, when or where it was made, how it was communicated, that the person making the statement knew it was false at the time it was made and intended for John to rely upon the statement, or how his reliance was reasonable or justified. It is not clear whether John actually intends to allege a fraud cause of action, making this cause of action uncertain. (See Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 765 ["[f]raud in the execution . . . occurs when ' "the promisor is deceived as to the nature of his act, and actually does not know what he is signing, or does not intend to enter into a contract at all . . . and it is void."""].) <u>Financial Elder Abuse</u> This cause of action fails because it does not allege Plaintiff was 65 years or older in 1996, when the alleged abuse occurred. Financial abuse of an action occurs when a person takes or obtains real property of an elder for a wrongful use or with intent to defraud. (Welf. & Inst. Code, § 15610.30(a)(1).) For purposes of the statute, "a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder [] is deprived of any property right[.]" (Id., § 15610.30(c).) "Elder" refers